

SENATE BILL No. 159

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-20-13-7; IC 20-26-5.

Synopsis: School technology plans and policies. Requires school corporations and charter schools (schools) to include in the school's technology plan a description of the school's plan to: (1) ensure the appropriate use of technological devices in schools; and (2) enable parents of students to exercise control over a student's technological devices while the student is not in school. Not later than January 1, 2027, requires a school to include in the school's Internet use policy a provision that enables the parent of a student to increase the strength of certain filters and limit the use of certain devices. Requires a school to include in the school's wireless communication device policy a provision that prohibits a student from using school supplied technological devices for a noneducational purpose during instructional time.

Effective: July 1, 2026.

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January 5, 2026, read first time and referred to Committee on Education and Career Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 159

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 20-20-13-7, AS AMENDED BY P.L.189-2023, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Notwithstanding any other law, a:

(1) school corporation may not:

(A) receive any money under this chapter;

(B) use money from the school corporation's education fund for educational technology equipment under IC 20-40-2; or

(C) receive an advance from the common school fund for an educational technology program under IC 20-49-4; and

(2) charter school may not receive:

(A) a technology plan grant under sections 13 through 24 of this chapter; or

(B) an advance from the common school fund for an educational technology program under IC 20-49-4;

unless the school corporation or charter school develops a three (3) year technology plan.

(b) Each technology plan must include at least the following



information:

(1) A description of the school corporation's or charter school's intent to integrate technology into the school corporation's or charter school's curriculum.

(2) A plan for providing inservice training.

(3) A schedule for maintaining and replacing educational technology equipment.

(4) A description of the criteria used to select the appropriate educational technology equipment for the appropriate use.

(5) A description of the school corporation's or charter school's plan to:

(A) ensure the appropriate use of technological devices in schools; and

(B) enable parents of students to exercise control over a student's technological devices while the student is not in school as described in IC 20-26-5-40.5(c).

~~(5)~~ **(6)** Other information requested by the department after consulting with the budget agency.

(c) The department shall develop guidelines concerning the development of technology plans. The guidelines developed under this subsection are subject to the approval of the governor.

SECTION 2. IC 20-26-5-40.5, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.5. (a) ~~Not later than January 1, 2022~~, Each school corporation and charter school shall adopt and implement an Internet use policy that:

(1) prohibits the sending, receiving, viewing, or downloading of materials that are harmful to minors (as described in IC 35-49-2-2) on computers and other technology related devices owned by the school corporation or charter school;

(2) provides for the use of hardware or installation of software on computers and other technology related devices described in subdivision (1) to filter or block Internet access to materials that are harmful to minors; and

(3) establishes appropriate disciplinary measures to be taken against persons violating the policy established under this section.

(b) ~~Not later than January 1, 2022~~, Each school corporation and charter school shall use hardware or install software on computers and other technology related devices described in subsection (a)(1) to filter or block Internet access to materials that are harmful to minors.

(c) Not later than January 1, 2027, each school corporation and



1 **charter school shall adopt and implement a policy that enables the**
 2 **parent of a student to:**

- 3 **(1) increase the strength of the filter described in subsection**
 4 **(b); and**
 5 **(2) limit the amount of time a device described in subsection**
 6 **(a)(1) may be used by the student while the student is not in**
 7 **school.**

8 **A school to which this subsection applies must inform each parent**
 9 **of a student enrolled in the school of the policy described in this**
 10 **subsection.**

11 ~~(c)~~ **(d)** Each school corporation and charter school shall post on the
 12 school corporation's or charter school's ~~Internet web site~~ **website** the
 13 Internet use policy established under subsection (a).

14 SECTION 3. IC 20-26-5-40.7, AS ADDED BY P.L.24-2024,
 15 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 16 JULY 1, 2026]: Sec. 40.7. (a) As used in this section, "instructional
 17 time" has the meaning set forth in IC 20-30-2-1.

18 (b) As used in this section, "wireless communication device" means
 19 any portable wireless device that has the capability to provide voice,
 20 messaging, or other data communication between two (2) or more
 21 parties, including a:

- 22 (1) cellular telephone;
 23 (2) tablet computer;
 24 (3) laptop computer; or
 25 (4) gaming device.

26 (c) Each school corporation and charter school shall adopt and
 27 implement a wireless communication device policy that:

- 28 (1) except as provided in subdivisions (2) and (3) and subsection
 29 (d), prohibits a student from using a:

30 **(A) wireless communication device during instructional time;**
 31 **and**

32 **(B) school supplied wireless communication device for a**
 33 **noneducational purpose during instructional time;**

34 (2) authorizes a teacher to allow a student to use a wireless
 35 communication device for educational purposes during
 36 instructional time; and

37 (3) permits a student to use a wireless communication device in
 38 the event of an emergency or to manage the student's health care.

39 (d) The policy adopted and implemented under subsection (c) may
 40 not prohibit a student from using a wireless communication device
 41 during instructional time if the use of the wireless communication
 42 device is included in the student's:



- 1 (1) individualized education program; or
- 2 (2) plan developed under Section 504 of the federal Rehabilitation
- 3 Act of 1973, 29 U.S.C. 794.
- 4 (e) Each school corporation and charter school shall publish on its
- 5 website the wireless communication device policy established under
- 6 subsection (c).

